Wrongful Convictions and Race: Analysis of Social Problems, Proposed Solutions, Legal Approaches, and Personal Views

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Wrongful Convictions and Race

Wrongful convictions represent a grave failure of justice, an alarming issue that disrupts the foundations of the legal system and disproportionately impacts minority communities. According to Jochnowitz, scholars predict an error rate of 0.5% to 1.0%, which suggests that up to 2,500 innocent individuals may be imprisoned annually (Jochnowitz, p.9 2021). Particularly concerning is the disproportionate intersection of wrongful convictions and race, which has been extensively studied and debated in recent years. This essay examines into the complex reality of wrongful convictions, highlighting the serious impacts of this social issue, investigating conservative and liberal solutions, analyzing legal methods that aim to right these injustices, and finally providing my personal perspective on how to approach this critical problem. It is clear from a thorough examination of these factors that everyone must share responsibility for the development of a fair and just judicial system, regardless of ideological differences.

The Social Problem: Wrongful Convictions and Race

The term "wrongful convictions," refers to situations in which people are wrongfully found guilty of crimes they did not commit. These injustices can have a significant impact on minority communities as well as the legal system as a whole. Unfortunately, black men are the most affected, and this impact is severe, "... innocent Black Americans are seven times more likely than white Americans to be falsely convicted of serious crimes" (Gross et al., 2022). Due to ingrained prejudices and discriminatory practices, members of minority communities frequently run a higher risk of being unfairly convicted. Wrongful convictions feed into a cycle of mistrust between minority populations and the police, escalating already-present tensions and prejudices. Wrongful convictions have a negative impact on the public's perception of the criminal justice system's fairness and reliability. Innocent people of color are being unfairly convicted calls into question the efficiency of police enforcement methods, the collection of evidence, the execution of trials, and the overall integrity of the justice system. These cases draw

attention to underlying issues that may result in the wrongful detention of innocent people and undermining the credibility of the entire legal system.

Race is undeniably a significant factor contributing to wrongful convictions, often fueled by cognitive bias and the theory of *stereotype threat*. According to this theory, experiences between law enforcement and minority citizens are clouded by fear and apprehension, which causes officers to mistakenly interpret certain acts as being "furtive" or suspicious. Officers may unintentionally interpret the anxious responses brought on by stereotype threat as potential criminal activity. A case in point is the notion that behaviors stemming from stereotype-induced anxiety may be misperceived as "furtive movements." Interestingly, the court's ruling in Floyd v. City of New York challenges this idea, holding that there is no substantial evidence to support the idea that black people's motions are intrinsically more evasive than those of white people. However, despite such clarifications, the influence of stereotype threat on police judgments and actions remains a disconcerting reality, perpetuating a cycle of racial disparities within the criminal justice system (Jochnowitz et al., 2021).

The Innocence Project:

The Innocence Project has become an essential asset in the fight against the system's deeply ingrained racial inequities, particularly in wrongful convictions. The organization has had

a significant influence, as seen by the data, which show that 60% of the people it has successfully cleared since 1992 are Black. This demographic alignment is consistent with findings from the National Registry of Exonerations, which reveals an eye-opening truth: Black people account for more than half of the 3,300 exonerations recorded between 1989 and 2022, although making up only 13.6% of the U.S. population (*Race and Wrongful Conviction - Innocence Project*, 2023).

Wrongful Convictions and Race

The unfortunate story of Andre Hatchett reveals the serious faults in the criminal justice system and highlights the disastrous effects of the wrongfully convicted. After enduring an unjust 25-year incarceration, Hatchett's release on March 10, 2016, owes its gratitude to the unyielding efforts of the Innocence Project and attorney Jim Brochin from Paul, Weiss, Rifkind, Wharton & Garrison LLP. Collaborating with the Brooklyn District Attorney's Conviction Integrity Unit, a fresh examination of Hatchett's 1991 murder case unveiled unsettling revelations. The key witness, initially an informant, had first pointed to another person as the potential culprit, shedding light on a troubling pattern of possible misinformation and manipulation. This breakthrough offers hope for Hatchett's imminent freedom, alongside the unwavering support of his surviving family (*Andre Hatchett - Innocence Project*, 2023).

Proposed Solutions: Conservative and Liberal Perspectives

Conservative strategies that seek to reduce racial inequities in the criminal justice system frequently place a high priority on upholding law and order and strongly emphasize personal accountability. Two specific strategies stand out within this framework: the adoption of stricter sentencing guidelines and a greater utilization of technology in criminal investigations. Conservative theology is known for its strict sentencing laws, which are intended to prevent criminal activity and protect communities. This strategy comprises imposing harsher sanctions, especially for violent actions, in the hope that the increased repercussions will make society a safer place. Longer jail sentences, minimum requirements, and fewer opportunities for parole or early release are a few of the suggested measures.

Liberal approaches to racial inequality in the criminal justice system place a significant emphasis on systemic change and social justice. Liberal strategies emphasize resolving the root causes and promoting fairness in the goal of an equal society, in contrast to conservative ones

that frequently focus an emphasis on upholding law and order. One significant strategy is to promote thorough criminal justice reform that stresses alternatives to traditional incarceration and places a focus on rehabilitation as a fundamental component. Liberals work to address the root causes of criminal behavior, such as systemic prejudice, illiteracy, and poverty. Supporting laws that lessen mandatory minimum sentences, give nonviolent offenders alternatives to prison, and prioritize the use of restorative justice procedures are all part of this strategy.

Conservatives and liberals find common ground in addressing wrongful convictions and racial disparities within the criminal justice system. They both emphasize how crucial it is to enhance forensic science and technology in order to increase the reliability of the evidence. Additionally, in order to avoid injustices, both sides urge fair access to competent legal representation. Both transparency and accountability are important issues, and both support tools like body cameras and audio recordings of interrogations. Finally, there is a shared commitment to helping wrongfully convicted people get their convictions overturned and reintegrate into society, demonstrating their shared desire for a more just and equitable legal system.

Addressing the Problem in Law

Exonerees frequently find themselves without state compensation after being wrongfully convicted for years. Many states still lack thorough compensation statutes to address the predicament of these unfairly convicted people. There are “currently 38 states plus the District of Columbia have statutes to compensate exonerees for their wrongful convictions, but the process can take years … The National Registry of Exonerations estimates about 41 percent of those who have sought compensation through the states have been paid” (Janse, 2023).

With help from the Innocence project and advocates, new laws are enacted to help the exonerees adapt and bring justice. Idaho’s Governor, Brad Little, signed the "Wrongful

Conviction Act" into law in 2021. After adopting this historic step, Idaho is now the 36th state to support the need to compensate people who have suffered from wrongful convictions. This legislative effort, led by Senator Doug Ricks and Representative Barbara Ehardt, provides a beneficial reparation structure. Idaho's new law guarantees a fixed amount of $62,000 for each year of unjustified incarceration or $75,000 for each year unjustifiably spent on execution row. This legislation emphasizes a community commitment to correcting previous injustices and is consistent with the national environment, where the average compensation granted through state statutes stands at $68,000 per year of wrongful conviction.

Personal Approach to Resolving this Social Problem

In order to prevent false convictions and eliminate racial inequities in the criminal justice system, I believe education and public awareness can play a crucial role. People can better grasp the structural issues, such as biases and ineffective judicial systems, that lead to wrongful convictions through targeted teaching programs. Citizens who are well-informed are better able to push for changes and demand accountability from the criminal justice system. Public awareness campaigns support education by drawing attention to specific instances of injustice and their widespread effects. These campaigns create public pressure by spreading these stories through various forms of media, which results in legislative changes and encourages community involvement. An important discussion on unjust convictions and racial inequities is created by the connection between education and public awareness. People can learn from exonerees, attorneys, and advocates through community conversations, workshops, and seminars, building a common resolve to correct systematic injustices. People are more inclined to participate in advocacy campaigns that fight for comprehensive reform as the public's awareness grows, ultimately resulting in a criminal justice system that is more equal and just.

Conclusion

In conclusion, the complex and serious issue of wrongful convictions and resulting racial disparities within the criminal justice system highlight the urgent need for comprehensive and effective reforms. Wrongful convictions have terrible effects that go beyond the lives of the individual, damaging the entire foundation of the law and shattering the trust of the community. The disproportionate impact on minority groups, especially African Americans, who have a frustrating seven-fold greater likelihood for wrongful convictions, emphasizes the need for correction. Advances in legislation, like Idaho's "Wrongful Conviction Act," highlight the requirement for restitution and justice for exonerees. To deal with the financial and psychological effects of erroneous convictions, however, uniform and universal compensation regulations are essential. In order to tackle this problem, education and public awareness are crucial strategies. They help people see institutional weaknesses, demand changes, and keep the criminal justice system accountable. Campaigns for public awareness magnify voices, influencing legislation and encouraging community involvement. A criminal justice system that is fairer and more equal can be established through these joint efforts, bridging ideological differences for a shared desire for justice.

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